

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 737

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; REPEALING SECTION 67-818, IDAHO CODE, RELATING TO THE COORDINATION OF POLICY AND PROGRAMS RELATED TO THREATENED OR ENDANGERED SPECIES IN IDAHO; AMENDING CHAPTER 8, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-818, IDAHO CODE, TO ESTABLISH THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 67-819, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE SPECIES CONSERVATION FUND AND TO RENAME THE FUND; AMENDING SECTION 22-5501, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 36-715, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 36-1121, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 36-2402, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 36-2403, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 36-2405, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 42-251, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 47-1706, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 57-1306, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 67-826, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 67-5303, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 67-5806, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AMENDING SECTION 67-5807, IDAHO CODE, TO PROVIDE FOR THE OFFICE OF SPECIES, MINERALS, AND ENERGY COORDINATION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section [67-818](#), Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Chapter 8, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-818, Idaho Code, and to read as follows:

67-818. SPECIES, MINERALS, AND ENERGY COORDINATION.

(1) (a) The legislature finds that:

(i) Idaho has been a leader in the nation promoting conservation of endangered, threatened, rare, declining, and candidate species by working with willing landowners, state agencies, and federal

1 agencies to cooperatively and voluntarily preserve and protect
2 species rather than use regulatory force;

3 (ii) Idaho has a rich mining history, as evidenced by the pres-
4 ence of a miner on the state seal, and is rightfully known as the
5 gem state given that at least thirty (30) of the sixty (60) crit-
6 ical minerals and fifteen (15) rare earth elements have been dis-
7 covered in the state, which puts Idaho in a unique position to pro-
8 duce and develop minerals that are vital for our national defense
9 and economy and are necessary to advance technology and the modern
10 lifestyle;

11 (iii) Idaho is a recognized national leader in research, develop-
12 ment, and deployment of advanced nuclear technology and is home to
13 the first nuclear-powered city in the United States and the devel-
14 opment of the nation's nuclear navy program;

15 (iv) Idaho citizens and businesses enjoy some of the least expen-
16 sive electric rates in the nation, mostly due to our extensive hy-
17 dropower system and energy infrastructure; and

18 (v) Coordinated and consolidated advancement in species con-
19 servation and energy and mineral development within the state of
20 Idaho is necessary to reduce regulatory burden, streamline state
21 and federal processes, and ensure Idaho's resources are responsi-
22 bly developed.

23 (b) Therefore, the intent of the legislature is to improve coordina-
24 tion, policy alignment, and operational efficiency by merging the of-
25 fice of energy and mineral resources, an entity formally established by
26 executive order, and the office of species conservation, an entity for-
27 mally established by statute, into a single administrative office that
28 advances Idaho's natural resource priorities, facilitates federal and
29 state permitting processes and coordination between federal and state
30 agencies, and ensures prompt review and timely decision-making in com-
31 pliance with all applicable federal and state laws. This merger does
32 not create a new regulatory agency nor establish any additional layers
33 of approval beyond those already required by law.

34 (2) As used in this section:

35 (a) "Administrator" means the administrator of the office of species,
36 minerals, and energy coordination.

37 (b) "Appropriate agency" means any and all state and federal agencies
38 deemed relevant and appropriate by the administrator.

39 (c) "Clean energy resource" has the same meaning as provided by section
40 67-8903, Idaho Code.

41 (d) "Energy" means and includes electricity, oil, natural gas, bioen-
42 ergy, nuclear energy, clean energy, hydrogen, transportation fuels,
43 and other similar sources.

44 (e) "Mineral" means and includes naturally occurring, inorganic,
45 metallic, nonmetal, or solid energy substances that are leasable, sal-
46 able, or locatable.

47 (f) "Natural resource" means and includes land, air, water, species,
48 and energy and mineral resources.

49 (g) "Office" means the office of species, minerals, and energy coordi-
50 nation.

1 (h) "Species" means and includes any species or subspecies of fish or
2 wildlife or plants, and any distinct population segment of any species
3 of vertebrate fish or wildlife that interbreeds when mature, and the
4 habitat thereof that is listed as endangered or threatened pursuant to
5 the endangered species act, is petitioned to be a listed species or is
6 listed as a candidate species pursuant to the endangered species act,
7 or is found to be rare and declining, as that term is defined in section
8 36-2401, Idaho Code.

9 (3) There is hereby created in the office of the governor the office of
10 species, minerals, and energy coordination. The administrator of the office
11 shall be appointed by, and serve at the pleasure of, the governor and shall be
12 subject to confirmation by the senate.

13 (4) The administrator shall:

14 (a) Be the official in the state designated to oversee implementation
15 of federal recovery plans, as provided in 16 U.S.C. 1533(f);

16 (b) Oversee and coordinate the state's energy, mineral, and species
17 planning;

18 (c) Coordinate statewide response to federal natural resource-related
19 projects and activities that are proposed to occur in the state; and

20 (d) Fulfill the duties provided by this section.

21 (5) The office shall:

22 (a) Serve as Idaho's primary liaison to federal natural resource agen-
23 cies;

24 (b) Serve as a cooperating agency for natural resource-related
25 projects that are subject to federal environmental laws and regula-
26 tions;

27 (c) Design, implement, and facilitate a coordinated permitting process
28 that will improve transparency, predictability, and timeliness for
29 natural resource-related projects;

30 (d) Assist with state and federal natural resource-related permit
31 process coordination;

32 (e) Ensure state and federal agencies, departments, and divisions are
33 adhering to statutory time frames applicable to issuance of permits or
34 other natural resource-related project documents, processes, and deci-
35 sions and take appropriate action when such state or federal entity is
36 refusing to act;

37 (f) Notify the appropriate state agency of proposed natural re-
38 source-related projects and lead coordination of state comments on
39 proposed natural resource-related projects or activities within the
40 state;

41 (g) Provide input, comment, and assistance to federal, state, and
42 tribal governments, agencies, and divisions on natural resource is-
43 sues;

44 (h) Participate in regional efforts to cooperatively address species
45 and energy-related activities, planning, and conservation;

46 (i) Coordinate:

47 (i) With federal agencies, state agencies, local governments,
48 and stakeholders on issues concerning the state's energy require-
49 ments, supply, transmission, management, efficiency, conserva-
50 tion, and permitting processes and other relevant efforts;

1 (ii) With federal agencies, state agencies, local governments,
 2 and stakeholders on issues concerning mineral exploration, pro-
 3 duction, planning, and permitting processes and other relevant
 4 efforts;
 5 (iii) With the various state departments and divisions that have
 6 duties and responsibilities affecting species in the state;
 7 (iv) State implementation and response to federal recovery plans,
 8 biological opinions, guidance, and projects among all state and
 9 local governments in the state; and
 10 (v) The state's energy, mineral, and species planning with appro-
 11 priate state agencies;
 12 (j) Advise the governor, the legislature, and other public officials
 13 on:
 14 (i) The state's energy requirements, supply, transmission, man-
 15 agement, efficiency, conservation, and permitting processes and
 16 on other relevant efforts;
 17 (ii) Mineral exploration, production, planning, and permitting
 18 processes and other relevant efforts within the state; and
 19 (iii) Issues regarding species.
 20 (k) Ensure federal land management plans, policies, and projects align
 21 with state natural resource-related plans, policies, and projects and
 22 coordinate with appropriate agencies to resolve inconsistencies;
 23 (l) Develop and implement state conservation plans, assessments, and
 24 strategies for species in the state of Idaho;
 25 (m) Serve as a repository for agreements and plans among governmental
 26 entities in the state of Idaho for the conservation of species;
 27 (n) Provide the people of the state of Idaho with an ombudsman who
 28 can listen to citizens being harmed or hindered by the regulations of
 29 the endangered species act and direct them to the appropriate state
 30 or federal agency or speak on their behalf, as deemed appropriate by
 31 the ombudsman, to address issues or concerns related to the endangered
 32 species act;
 33 (o) Identify sections of statute or administrative rule that are du-
 34 plicative or unnecessary or that unreasonably prolong the state's per-
 35 mitting process; and
 36 (p) Cooperate, consult, and enter into agreements or contracts as is
 37 necessary or appropriate to carry out the provisions of this section.
 38 (5) State management plans developed pursuant to this section shall be
 39 developed in consultation with the appropriate state agencies.
 40 (6) The state of Idaho asserts primacy over the management of its nat-
 41 ural resources. Accordingly, any introduction or reintroduction of any
 42 species onto lands within the state or into state waters, including those
 43 actions that would impair or impede the state's primacy over its natural
 44 resources, without state consultation and approval is against the policy of
 45 the state of Idaho and is hereby prohibited.
 46 (7) No provision of this section shall be interpreted as to supersede,
 47 abrogate, injure, or create rights to divert or store water and apply water
 48 to beneficial uses established under section 3, article XV of the constitu-
 49 tion of the state of Idaho and title 42, Idaho Code.

(a) The duties, responsibilities, and authority of this section shall not alter any existing authorities of state agencies established by state law.

(b) Nothing in this section shall be construed to provide or imply any regulatory authority by the office over activities that are subject to the jurisdiction of another state agency.

(8) On July 1, 2026, all personnel, records, and equipment of the office of energy and mineral resources and of the office of species conservation shall be transferred to the office of species, minerals, and energy coordination.

SECTION 3. That Section 67-819, Idaho Code, be, and the same is hereby amended to read as follows:

67-819. FUNDING -- ACCOUNT CREATED. (1) The ~~governor's~~ office of ~~species conservation~~ species, minerals, and energy coordination may accept private contributions, federal funds, funds from other public agencies or any other source. The moneys shall be used solely for the purposes provided in section 67-818, Idaho Code, and be expended and accounted for as provided by law.

(2) There is hereby established in the state treasury the ~~species conservation~~ species, minerals, and energy coordination fund which shall consist of all moneys received pursuant to subsection (1) of this section. Moneys in the ~~species conservation~~ species, minerals, and energy coordination fund shall be used for purposes described in section 67-818, Idaho Code.

SECTION 4. That Section 22-5501, Idaho Code, be, and the same is hereby amended to read as follows:

22-5501. IDAHO DEPREDATING WILDLIFE APPEALS BOARD. (1) There is hereby created the Idaho depredating wildlife appeals board in the office of the governor. The purpose of the board is to provide an appeal option for individuals who have suffered losses or damages from depredating wildlife but received a determination that such depredation could not be confirmed following the initial investigation. For purposes of this section, depredating wildlife includes grizzly bears, black bears, mountain lions, and wolves. The Idaho state department of agriculture, in consultation with the department of fish and game, is authorized to carry out the purposes of this section. The Idaho depredating wildlife appeals board shall consist of three (3) members representing the following executive agencies and professional expertise:

(a) The director of the Idaho state department of agriculture or the director's authorized designee;

(b) The director of the Idaho department of fish and game or the director's authorized designee; and

(c) A large animal veterinarian appointed by the governor.

(2) The ~~office of species conservation~~ office of species, minerals, and energy coordination shall receive appeal requests from appellants and coordinate meetings with the Idaho depredating wildlife appeals board.

(3) The board shall consider all forms of evidence submitted by the appellant related to the depredation event, including but not limited to:

- 1 (a) Testimony of the affected individual;
- 2 (b) Testimony of the initial investigator;
- 3 (c) The initial investigator's report;
- 4 (d) Eyewitness testimony;
- 5 (e) Telemetry data;
- 6 (f) Photographs and video footage;
- 7 (g) Trapping and hunting reports from the past six (6) months;
- 8 (h) Previous depredation incidents in the area; and
- 9 (i) Expert analysis.

10 (4) The board shall make a ruling based on submitted evidence and, if
 11 justified, amend the original determination based on a majority vote of the
 12 board. The decision of the board shall be final and binding for the purpose
 13 of receiving compensation for depredation.

14 (5) Any ruling made by the Idaho depredating wildlife appeals board of
 15 confirmed depredation shall be counted toward official counts of depreda-
 16 tion incidents.

17 (6) The board shall be considered a state authorized investigator but
 18 shall only serve as an appeal to the initial investigation.

19 (7) Meetings of the board shall not be subject to the provisions of
 20 chapter 2, title 74, Idaho Code.

21 (8) Initial investigators of depredation incidents from depredating
 22 wildlife shall inform individuals of their right to appeal any ruling to the
 23 Idaho depredating wildlife appeals board in writing.

24 SECTION 5. That Section 36-715, Idaho Code, be, and the same is hereby
 25 amended to read as follows:

26 36-715. WOLVES -- TRANSITION -- AUTHORITIES AND DUTIES OF THE OFFICE
 27 OF ~~SPECIES CONSERVATION SPECIES, MINERALS, AND ENERGY COORDINATION~~ -- FISH
 28 AND GAME COMMISSION -- DEPARTMENT OF FISH AND GAME. (1) During the transi-
 29 tion from federal management of wolves to state management, the governor's
 30 office of ~~species conservation species, minerals, and energy coordination~~
 31 shall be the lead agency and direct implementation of wolf management pol-
 32 icy. The department of fish and game may assist the office of ~~species conser-~~
 33 ~~vation species, minerals, and energy coordination~~ in efforts to expedite an
 34 orderly transition to state management of wolves pursuant to the provisions
 35 of the Idaho wolf conservation and management plan. This transition shall be
 36 implemented through new or existing cooperative agreements with any agency,
 37 department or entity of the United States government or any state agencies as
 38 authorized by the Idaho wolf conservation and management plan.

39 (2) The office of ~~species conservation species, minerals, and energy~~
 40 ~~coordination~~, and the commission through the department, are authorized to
 41 participate in activities regarding nuisance wolves, and are allowed to meet
 42 and confer with state, local and federal agencies, departments or entities
 43 or federally recognized Indian tribes to discuss monitoring wolf recovery
 44 programs. Additionally, the office of ~~species conservation species, miner-~~
 45 ~~als, and energy coordination~~, and the commission through the department, may
 46 cooperate with the legislature, counties, federal agencies, departments,
 47 such as the United States department of agriculture wildlife services, en-
 48 tities or federally recognized Indian tribes regarding damage complaints,

1 depredation, effects on ungulate populations, and other conflicts regarding
2 wolves in this state.

3 (3) The office of ~~species conservation species~~, minerals, and energy
4 coordination, in conjunction with the department, shall prepare and sub-
5 mit an annual report to the senate resources and environment committee and
6 the house resources and conservation committee on the implementation and
7 progress of the Idaho wolf conservation and management plan. Such report
8 shall document gray wolf effects upon wildlife, depredation on domestic
9 livestock, and any other subject matter as deemed appropriate and requested
10 in writing by the chairman of the senate resources and environment committee
11 or the chairman of the house resources and conservation committee, or any
12 member of the legislature.

13 (4) The office of ~~species conservation species~~, minerals, and energy
14 coordination, in conjunction with the department, is authorized to develop
15 and coordinate wolf management plans with state agency officials of the
16 states of Wyoming and Montana.

17 (5) In implementing the wolf conservation and management plan, the
18 office of ~~species conservation species~~, minerals, and energy coordination,
19 and the commission through the department, shall consult with local units of
20 government with respect to, and take into consideration, local economies,
21 custom, culture, and private property rights. The office of ~~species con-~~
22 servation species, minerals, and energy coordination and the department
23 may consult with federal entities and shall coordinate with state and local
24 government entities in the implementation of the plan.

25 (6) The department of fish and game, under the direction of the com-
26 mission, is authorized to participate in the development of wolf delisting
27 procedures and interim management activities including, but not limited to,
28 studies relating to the management of game herds impacted by wolves.

29 SECTION 6. That Section 36-1121, Idaho Code, be, and the same is hereby
30 amended to read as follows:

31 36-1121. LIVESTOCK DEPREDAATION BY GRIZZLY BEAR AND WOLVES. (1) It is
32 the intent of the legislature to provide compensation to livestock owners
33 that have experienced depredation of livestock by grizzly bear and wolves.

34 (2) The Idaho state department of agriculture, in consultation with the
35 department of fish and game and the office of ~~species conservation species~~,
36 minerals, and energy coordination, is authorized to carry out the purposes
37 of this section and has spending authority for compensation pursuant to this
38 section to the extent of legislative appropriation. The depredation of
39 livestock and prevention fund is hereby established in the state treasury.
40 All expenditures from the fund will be paid according to rules promulgated
41 by the Idaho state department of agriculture. Beginning on July 1, 2024,
42 and each July 1 thereafter, the legislature shall appropriate two hundred
43 twenty-five thousand dollars (\$225,000) annually to the fund. One hundred
44 fifty thousand dollars (\$150,000) of that amount shall be used annually to
45 compensate confirmed claims for depredation, and seventy-five thousand
46 dollars (\$75,000) of that amount shall be used annually for conflict preven-
47 tion and the provision of information regarding deterrents that have proven
48 effective as determined pursuant to rule as promulgated by the Idaho state
49 department of agriculture. All claims shall be made to the office of ~~species~~

1 ~~conservation species, minerals, and energy coordination~~ on or before De-
 2 cember 31 of each year. Confirmed claims for depredation shall be paid on
 3 a pro rata basis in the event moneys in the fund are insufficient to pay all
 4 confirmed claims in full, until such time as moneys in the fund are depleted.
 5 Any moneys in the fund after payment of confirmed claims shall then be paid
 6 to those livestock owners with probable claims for depredation on a pro rata
 7 basis in the event moneys in the fund are insufficient to pay all probable
 8 claims in full, until such moneys in the fund are depleted. Any moneys in
 9 the fund after payment of claims deemed probable shall then be paid to those
 10 livestock owners with claims reviewed and deemed possible on a pro rata basis
 11 in the event moneys in the fund are insufficient to pay all possible claims
 12 in full, until such moneys in the fund are depleted. Any moneys in the fund
 13 after possible depredation claims are paid shall be carried over to the next
 14 calendar year. Interest accruing on moneys in the fund shall be retained in
 15 the fund. Moneys shall be continuously appropriated to the fund, but the
 16 fund shall not exceed four hundred thousand dollars (\$400,000).

17 (3) Compensation for claims confirmed or deemed probable or possible
 18 shall be based on current fair market value as provided by the Idaho state de-
 19 partment of agriculture. Any other compensation paid to a livestock owner
 20 for depredation shall be deducted from the fair market value prior to pay-
 21 ment.

22 (4) For purposes of this section, "livestock" means cattle, sheep,
 23 goat, swine, poultry, bees, llamas, or equine animals used for food or in the
 24 production of food, fiber, feed, or other agriculture-based consumer prod-
 25 ucts, domesticated game, or other nonplant life; such term shall not include
 26 aquatic animals.

27 SECTION 7. That Section 36-2402, Idaho Code, be, and the same is hereby
 28 amended to read as follows:

29 36-2402. DELISTING ADVISORY TEAM -- DUTIES -- MEMBERSHIP. (1) The
 30 director of the department of fish and game for animal species and plant
 31 species, in cooperation and consultation with the governor's office of
 32 ~~species conservation species, minerals, and energy coordination~~, may estab-
 33 lish a delisting advisory team (DAT) of no more than nine (9) members for a
 34 threatened species or endangered species, to recommend an appropriate state
 35 species management plan for a listed species in response to a notification
 36 from the secretary of interior or secretary of commerce of intent to delist
 37 the species or sooner if deemed appropriate.

38 (2) The delisting advisory team members shall be broadly representa-
 39 tive of the constituencies with an interest in the species and its management
 40 or conservation and in the economic or social impacts of management or con-
 41 servation including, where appropriate, depending on the specific species,
 42 representatives of tribal governments, local governments, academic insti-
 43 tutions, private individuals and organizations and commercial enterprises.
 44 The delisting advisory team members shall be selected based upon:

- 45 (a) Their knowledge of the species;
- 46 (b) Their knowledge and expertise in the potential conflicts between a
 47 species' habitat requirements or management and human activities;
- 48 (c) Their knowledge and expertise in the interests that may be affected
 49 by species management or conservation; or

1 (d) Other factors that may provide knowledge, information, or data that
2 will further the intent of this act.

3 SECTION 8. That Section 36-2403, Idaho Code, be, and the same is hereby
4 amended to read as follows:

5 36-2403. OPERATIONS OF DELISTING ADVISORY TEAM. (1) The delisting ad-
6 visory team shall elect a team leader who shall chair all meetings of the team
7 and otherwise administer its operations. The team shall meet as necessary,
8 but shall meet no less than once every six (6) months.

9 (2) Members of the team not in the employ of public agencies may be com-
10 pensated as provided in section 59-509(b), Idaho Code, from the budget of
11 the governor's office of ~~species conservation~~ species, minerals, and energy
12 coordination. Their department or division shall compensate its members of
13 the team who are state employees.

14 SECTION 9. That Section 36-2405, Idaho Code, be, and the same is hereby
15 amended to read as follows:

16 36-2405. RECOMMENDATION ON MANAGEMENT PLANS. (1) The delisting advi-
17 sory team shall submit the management plan to the director of the department
18 of fish and game for animal or plant species, for review and recommendation.

19 (2) The director shall review the management plan and make a recommen-
20 dation to the fish and game commission. The director may recommend either
21 approval of the management plan, or recommend to return the management plan
22 to the delisting advisory team for further study and review, with instruc-
23 tions, prior to return of the species strategy or management plan to the di-
24 rectors.

25 (3) If the fish and game commission finds that the management plan pro-
26 vides for the management and conservation of the species when it is delisted
27 by the secretary of the interior or secretary of commerce and that reason-
28 able safeguards are included in the management plan to protect the health,
29 safety, private property and economic well-being of the citizens of the
30 state of Idaho, the fish and game commission shall approve the management
31 plan.

32 (4) If the fish and game commission makes the finding required in sub-
33 section (3) of this section, the fish and game commission shall forward the
34 state management plan, to the governor's office of ~~species conservation~~
35 species, minerals, and energy coordination and the legislature. The man-
36 agement plan is subject to legislative approval, amendment or rejection by
37 concurrent resolution at the regular session immediately following the com-
38 mission's finding and approval of the plan.

39 (5) The governor's office of ~~species conservation~~ species, minerals,
40 and energy coordination may petition the responsible public agencies to ini-
41 tiate rulemaking to facilitate the implementation of the approved manage-
42 ment plan.

43 (6) Each management plan developed pursuant to this chapter shall in-
44 clude a public education component that shall be developed and implemented
45 in cooperation with other appropriate bureaus of the department of fish and
46 game.

1 (7) Nothing in this act shall be interpreted as granting the department
2 of fish and game with new or additional authority.

3 SECTION 10. That Section 42-251, Idaho Code, be, and the same is hereby
4 amended to read as follows:

5 42-251. APPROPRIATION OF UNAPPROPRIATED FLOWS FOR LEMHI BASIN STREAM
6 FLOW MAINTENANCE -- LEGISLATIVE FINDINGS OF FACT CONCERNING HISTORIC USE OF
7 HIGH FLOWS IN THE LEMHI RIVER BASIN AND NEED FOR PROTECTION AND EFFECTIVE
8 MANAGEMENT OF SUCH USE. (1) Legislative Findings.

9 (a) In the absence of storage reservoirs in the Lemhi Basin, the diver-
10 sion of "high water or flood water" onto irrigated land in the spring
11 developed as a way of holding water underground within the basin, which
12 would later contribute to the flows in the Lemhi River and its tribu-
13 taries.

14 (b) The 1982 Lemhi Basin Decree recognized the practice of diverting
15 "high water or flood water" onto irrigated lands. It defined "high wa-
16 ter or flood water" as "natural flow of water over and above the amount
17 required to fulfill (1) existing quantified rights as shown in the de-
18 cree of water rights and (2) any future rights that may be established
19 pursuant to statutory procedures of the state of Idaho." Proposed Find-
20 ings of Water Rights, In the Matter of the General Determination of
21 the Rights to the Use of the Surface Waters and Tributaries from What-
22 ever Source of the Lemhi River Drainage Basin, Civil No. 4948, Feb.
23 16, 1982, at 3, paragraph n. The Lemhi Decree included a conclusion
24 of law stating the practice "of diverting so called 'high waters or
25 flood waters' in addition to the quantified rights as described in the
26 recommended decree of water rights (and future rights that may be estab-
27 lished pursuant to statutory procedures) [is] allowed provided: (a)
28 the waters so diverted are applied to beneficial use. (b) the existing
29 quantified rights (including future appropriations of water) are first
30 satisfied."

31 (c) Based on the conclusions of law in the Lemhi Basin Decree, many
32 Lemhi Basin irrigators filed claims in the Snake River Basin Adjudica-
33 tion (SRBA) seeking water rights for their historic "high water or flood
34 water" practice.

35 (d) On January 3, 2012, the SRBA Court affirmed the Special Master's Re-
36 port and Recommendation finding that "Idaho case law precludes the high
37 flow claimants from seeking to establish high flow water rights in the
38 SRBA as a matter of law." Memorandum Decision and Order on Challenge at
39 11, Subcase Nos. 74-15051, In re SRBA Case No. 39576. Although the SRBA
40 Court disallowed the high flow claims, it reaffirmed the Lemhi Basin De-
41 cree conclusion of law regarding "high water or flood water" use through
42 its Partial Decree pursuant to I.R.C.P. 54(b) of the Basin 74 High Flow
43 General Provision (Basin 74 General Provision). Basin 74 General Pro-
44 vision provides: "The following general provision shall govern the use
45 of 'High Flow' surface water for irrigation use within the Lemhi Basin:
46 The practice of diverting high flows in the Lemhi Basin, in addition to
47 diverting decreed and future water rights that may be established pur-
48 suant to statutory procedures of the State of Idaho, is allowed provided

1 (a) the waters so diverted are applied to beneficial use. (b) existing
2 decreed rights and future appropriations of water are first satisfied."

3 (e) Since the early 1990s Lemhi irrigators, with the assistance of
4 state agencies, have led an effort to protect and enhance salmon runs in
5 the Lemhi River Basin, including but not limited to providing passage
6 flows for salmon, screening diversion works and implementing habitat
7 improvement projects.

8 (f) The long-term goal of the Lemhi irrigators is to conserve, restore,
9 and enhance sufficient habitat to sustain viable fish populations in
10 the Lemhi River Basin while protecting private property rights and pre-
11 serving and enhancing the farming and ranching lifestyle and economy of
12 the Lemhi River Basin.

13 (g) In 2001, the Idaho Legislature enacted section 42-1506, Idaho Code,
14 at the request of the Lemhi Basin irrigators. This statute authorized
15 the Idaho Water Resource Board to appropriate a minimum stream flow in
16 the lower reach of the Lemhi River for the purpose of providing fish pas-
17 sage and for protection of Lemhi water users from enforcement actions
18 under the Endangered Species Act.

19 (h) Use of high flows under the Basin 74 General Provision is not a pro-
20 tected property interest under Idaho law. Because the SRBA Court disal-
21 lowed all "high water or flood water" claims, a conflict developed be-
22 tween irrigators who rely on the use of high flows under the Basin 74
23 General Provision and persons desiring to appropriate high flow for new
24 uses.

25 (i) The legislature finds (1) that the use of Lemhi River Basin high
26 flow for holding water underground to augment the natural flow of the
27 Lemhi River later in the irrigation season is a beneficial use of wa-
28 ter; and (2) that it is in the public interest to protect through the
29 appropriation process the entitlements to divert and use high flows un-
30 der the Basin 74 General Provision for efficient administration of such
31 uses and to aid in the proper planning for future development of the wa-
32 ter resources of the Lemhi River Basin.

33 (j) The Lemhi Basin stream flow maintenance applications provided for
34 in this section are based upon the historic practice recognized by the
35 Basin 74 High Flow General Provision, and therefore, are not intended to
36 nor shall be construed as establishing a precedent for issuance of any
37 future water rights in the State of Idaho.

38 (2) Stream Flow Maintenance Applications. Lemhi irrigators who hold
39 irrigation water rights decreed in the SRBA, and claim authority to divert
40 and use Lemhi Basin high flows for stream flow maintenance pursuant to the
41 Basin 74 General Provision may file an application for permit with the de-
42 partment of water resources to convert such use into a protectable water
43 right on or before July 1, 2024. The application shall be upon forms provided
44 by the department. The department shall process the application as provided
45 in section 42-203A, Idaho Code.

46 (3) Quantity of Right. The quantity of a stream flow maintenance water
47 right shall be limited to the historic high flow use under the Basin 74 Gen-
48 eral Provision ancillary to irrigation water rights decreed in the SRBA, but
49 not to exceed the ditch capacity of the decreed irrigation water rights on
50 August 25, 2014.

1 (4) Proof of Beneficial Use. The department may consider as part of its
 2 beneficial use examination for licensing of a permit under this section a
 3 permit holder's past historic diversions of high flow under the Basin 74 Gen-
 4 eral Provision.

5 (5) Comprehensive Settlement. All applications filed under this sec-
 6 tion shall be subject to the terms and conditions of the Lemhi Basin Compre-
 7 hensive Settlement Agreement Between the Idaho Water Resource Board, Idaho
 8 Department of Fish and Game, Idaho Office of ~~Species Conservation~~ Species,
 9 Minerals, and Energy Coordination, and Various Lemhi Water Users, including
 10 but not limited to the following conditions:

11 (a) Regardless of their priority dates, stream flow maintenance wa-
 12 ter rights shall include a condition requiring them to cease diversion
 13 while the McFarland Campground minimum stream flow water right estab-
 14 lished pursuant to section 42-1506A, Idaho Code, is being exercised.

15 (b) Regardless of priority date, the water supply legally available to
 16 stream flow maintenance water rights created under this section that
 17 divert from a common source shall be distributed proportionately among
 18 the stream flow maintenance water rights diverting from the common
 19 source, except as otherwise provided for in the Lemhi Basin Compre-
 20 hensive Settlement Agreement Between the Idaho Water Resource Board,
 21 Idaho Department of Fish and Game, Idaho Office of ~~Species Conservation~~
 22 Species, Minerals, and Energy Coordination, and Various Lemhi Water
 23 Users. For purposes of this section each tributary administered as a
 24 separate source pursuant to the SRBA Basin 74 Separate Streams General
 25 Provision is a common source. The mainstem Lemhi River and all trib-
 26 utaries in Basin 74 not listed in the SRBA Basin 74 Separate Streams
 27 General Provision are a common source.

28 (6) Notice - How Given - Requirements. To ensure all persons claiming
 29 authority to divert or withdraw and use water under the Basin 74 General Pro-
 30 vision are notified of the provisions of this section, the department of wa-
 31 ter resources is directed to give notice of the provisions of this section as
 32 follows:

33 (a) By regular mail upon all persons within Idaho department of water
 34 resources Administrative Basin 74 who currently own an irrigation water
 35 right decreed in the SRBA a notice in writing of the existence of this
 36 section;

37 (b) By publishing a notice in writing in a prominent and conspicuous
 38 place in at least one (1) newspaper of general circulation in Lemhi
 39 County, for at least one (1) day a month for three (3) consecutive
 40 months;

41 (c) By posting a written notice, with the cooperation of the Lemhi
 42 County commission, in a prominent and conspicuous location in the Lemhi
 43 County courthouse;

44 (d) By providing sufficient number of copies of the notice and decla-
 45 ration to the Lemhi County treasurer for enclosure with each mailing of
 46 one (1) or more statements of taxes due issued in 2023; and

47 (e) By such other means the director of the department in his discretion
 48 determines will carry out the purposes of this section.

49 SECTION 11. That Section 47-1706, Idaho Code, be, and the same is hereby
 50 amended to read as follows:

1 47-1706. DUTIES AND POWERS OF BOARD. In addition to the other duties
 2 and powers of the board prescribed by law, the board is granted and shall be
 3 entitled to exercise the following authority and powers and perform the fol-
 4 lowing duties:

5 (1) To reclaim any eligible mine and affected lands. Reclamation on
 6 federal lands shall be completed only upon consent of the federal agency re-
 7 sponsible for the administration of those lands. Reclamation activities may
 8 include:

9 (a) The reclamation and restoration of abandoned surface mined areas;

10 (b) The reclamation of abandoned milling and processing areas;

11 (c) The sealing, filling, and grading of abandoned deep mine entries;

12 (d) The planting of land adversely affected by past mining to prevent
 13 erosion and sedimentation;

14 (e) The prevention, abatement, treatment, and control of water pollu-
 15 tion created by abandoned mine drainage;

16 (f) The control of surface subsidence due to abandoned deep mines; and

17 (g) Such other reclamation activities as may be necessary to accomplish
 18 the purposes of this act.

19 (2) To administer and enforce the provisions of this act and the rules
 20 and orders promulgated thereunder as provided in this act.

21 (3) To conduct and promote the coordination and acceleration of re-
 22 search, studies, surveys, experiments, demonstrations, and training in
 23 carrying out the provisions of this act. In carrying out the activities
 24 authorized in this section, the board may enter into contracts with and make
 25 grants to institutions, agencies, organizations, and individuals, and shall
 26 collect and make available any information obtained therefrom.

27 (4) To adopt and promulgate reasonable rules respecting the adminis-
 28 tration of this act and such rules as may be necessary to carry out the intent
 29 and purposes of this act. All such rules shall be adopted in accordance with
 30 and subject to the provisions of chapter 52, title 67, Idaho Code.

31 (5) To enter upon eligible mines and affected lands at reasonable
 32 times, for inspection purposes and to determine whether the provisions of
 33 this act are being complied with. Inspections on private lands shall be con-
 34 ducted in the presence of the landowner or his duly authorized employees or
 35 representatives, or with written permission of the landowner.

36 (6) To establish an advisory committee to assist the department in set-
 37 ting priorities and planning reclamation work. The committee members shall
 38 be nominated by the governor and approved by the board. The committee shall
 39 consist of:

40 (a) One (1) representative from the Idaho department of environmental
 41 quality;

42 (b) One (1) representative from the governor's office of ~~energy and~~
 43 ~~mineral resources~~ species, minerals, and energy coordination;

44 (c) One (1) representative who is a county commissioner from a county
 45 with active mines;

46 (d) One (1) representative representing conservation interests; and

47 (e) Three (3) representatives from mining organizations or companies
 48 who are actively mining within the state of Idaho.

49 SECTION 12. That Section 57-1306, Idaho Code, be, and the same is hereby
 50 amended to read as follows:

57-1306. IMPACT FUNDS.

(1) (a) Upon receipt of any moneys from the federal government from sales, royalties, bonuses or rentals of oil, gas or mineral lands of the federal government, the state treasurer shall remit ten percent (10%) of such receipts to the general fund of the several counties from which the resources were extracted. The state treasurer shall compute a particular county's share of such receipts by computing the proportion of the moneys generated by sales, royalties, bonuses or rentals of federal lands situated within that particular county to the total of moneys received from the federal government from sales, royalties, bonuses or rentals of all oil, gas or mineral lands of the federal government within the state of Idaho for the same period. The moneys remitted to the various counties according to the provisions of this section shall be used for the construction and maintenance of public roads or for the support of public schools.

(b) The remaining ninety percent (90%) of any moneys received from the federal government from sales, royalties, bonuses or rentals of oil, gas or mineral lands of the federal government shall be deposited into the public school income fund, pursuant to the provisions of section 33-903, Idaho Code.

(2) (a) The state treasurer shall remit ten percent (10%) of any moneys received from the sale, royalties, bonuses or rental of renewable energy resources on lands of the federal government to the general fund of the several counties from which the resources were developed. The state treasurer shall compute a particular county's share of such receipts by computing the proportion of the moneys generated by sales, royalties, bonuses or rentals of federal lands situated within that particular county to the total of moneys received from the federal government from sales, royalties, bonuses or rentals of all renewable energy resource lands of the federal government within the state of Idaho for the same period. The moneys remitted to the various counties according to the provisions of this section shall be used for the construction and maintenance of public roads or for the support of public schools.

(b) The remaining ninety percent (90%) of any moneys received from the sale, royalties, bonuses or rental of renewable energy resources on lands of the federal government and any moneys from the federal government collected pursuant to the federal power act, 16 U.S.C. 803(e) (1), for the use of lands of the federal government shall be deposited by the state treasurer into the renewable energy resources fund, which is hereby created. Any interest earned on the investment of idle moneys in the renewable energy resources fund shall be returned to the fund. Moneys in the renewable energy resources fund may be expended pursuant to appropriation and may be used by the administrator of the office of energy and mineral resources species, minerals, and energy coordination consistent with duties, powers and authorities of the office.

(3) For the purposes of this section, "renewable energy resources" shall only include geothermal, wind and solar resources.

SECTION 13. That Section 67-826, Idaho Code, be, and the same is hereby amended to read as follows:

1 67-826. IDAHO ROADLESS RULE IMPLEMENTATION COMMISSION. (1) There is
 2 hereby established in the office of the governor an Idaho roadless rule im-
 3 plementation commission, hereinafter referred to as the "commission."

4 (2) The commission, in conjunction with the United States forest ser-
 5 vice, shall coordinate, advise, and propose projects, plans, and policies
 6 occurring within or affecting "Idaho roadless areas," as defined in 36 CFR
 7 294.21.

8 (3) The commission shall, as a part of its role of reviewing and propos-
 9 ing projects, plans, and policies for Idaho roadless areas, coordinate and
 10 advise on activities related to shared stewardship, good neighbor author-
 11 ity, forest health, and the protection of communities at risk from wildfire
 12 within and adjacent to Idaho roadless areas.

13 (4) The commission shall coordinate and develop policies related to
 14 the United States forest service's implementation and interpretation of the
 15 Idaho roadless rule as codified in 36 CFR 294, subpart C.

16 (5) The commission shall, as necessary, enter into memoranda of under-
 17 standing or other agreements with the United States forest service to coop-
 18 erate on activities subject to the Idaho roadless rule as provided in 36 CFR
 19 294, subpart C.

20 (6) The commission shall be supported by the governor's office of
 21 ~~species conservation~~ species, minerals, and energy coordination. Support
 22 for the commission shall include but is not limited to working with the
 23 United States forest service staff to propose and support projects within
 24 and adjacent to Idaho roadless areas, coordinate commission meetings, and
 25 other tasks as assigned by the commission or the governor.

26 (7) The members of the commission shall be appointed by and serve at
 27 the pleasure of the governor. The commission shall be composed of nine (9)
 28 to twelve (12) members. Three (3) members shall serve initial terms of four
 29 (4) years, three (3) members shall serve initial terms of three (3) years,
 30 and three (3) members shall serve initial terms of two (2) years. In the
 31 event that more than nine (9) members are appointed, such additional members
 32 shall serve initial terms of five (5) years. Following initial terms, mem-
 33 bers shall serve four (4) year terms. Members may be appointed from the fol-
 34 lowing three (3) categories:

35 (a) Individuals who:

- 36 (i) Represent developed outdoor recreation, off-highway vehicle
- 37 users or commercial recreation activities;
- 38 (ii) Represent energy or mineral development interests;
- 39 (iii) Represent the commercial timber industry; or
- 40 (iv) Hold a federal grazing lease or other federal land use lease.

41 (b) Individuals who:

- 42 (i) Represent an environmental organization;
- 43 (ii) Represent dispersed recreation activities;
- 44 (iii) Represent archaeological and historical interests; or
- 45 (iv) Represent a nationally or regionally recognized wildlife or
- 46 sportsmen's interest group.

47 (c) Individuals who:

- 48 (i) Participated in the development of the Idaho roadless rule or
- 49 were members of the roadless area conservation national advisory
- 50 committee;

1 (ii) Hold state, county, or local elected office;

2 (iii) Represent an American Indian tribe within the state of
3 Idaho; or

4 (iv) Represent the public at large.

5 (8) There shall be a chairman and a vice chairman of the commission
6 elected by a majority of the members of the commission. A majority of the
7 commissioners shall constitute a quorum.

8 (9) The commission meetings shall, if determined warranted, be held
9 semiannually or at other times upon the call of the chairman or a majority of
10 the commission.

11 (10) The commission shall prepare and submit an annual report, on or be-
12 fore January 15 of each year, to the senate resources and environment com-
13 mittee and the house resources and conservation committee reflecting the ac-
14 tions of the commission pursuant to the provisions of this section and set-
15 ting forth the membership of the commission.

16 SECTION 14. That Section 67-5303, Idaho Code, be, and the same is hereby
17 amended to read as follows:

18 67-5303. APPLICATION TO STATE EMPLOYEES. All departments of the state
19 of Idaho and all employees in such departments, except those employees
20 specifically defined as nonclassified, shall be classified employees who
21 are subject to this chapter and to the system of personnel administration
22 it prescribes. All nonclassified employees are subject to conformity with
23 classified positions as set forth in section 59-1603, Idaho Code. Nonclas-
24 sified employees shall be:

25 (a) Members of the state legislature and all other officers of the state
26 of Idaho elected by popular vote and persons appointed to fill vacancies in
27 elective offices and employees of the state legislature.

28 (b) Members of statutory boards and commissions and heads of depart-
29 ments appointed by and serving at the pleasure of the governor, deputy di-
30 rectors appointed by the director of a department, and members of advisory
31 boards and councils appointed by the departments.

32 (c) All employees and officers in the office, and at the residence, of
33 the governor; and all employees and officers in the offices of the lieutenant
34 governor, secretary of state, attorney general, state treasurer, state con-
35 troller, and state superintendent of public instruction.

36 (d) Except as otherwise provided by law, one (1) declared position des-
37 ignated by the appointing authority of a participating department, in addi-
38 tion to those declared to be nonclassified by other provisions of law.

39 (e) Part-time professional consultants who are paid on a fee basis for
40 any form of legal, medical or other professional service and who are not en-
41 gaged in the performance of administrative duties for the state.

42 (f) Judges, temporary referees, receivers and jurors.

43 (g) All employees of the Idaho supreme court, Idaho court of appeals and
44 district courts.

45 (h) All employees of the Idaho state bar.

46 (i) Assistant attorneys general attached to the office of the attorney
47 general.

48 (j) Officers, members of the teaching staffs of state higher educa-
49 tional institutions, the professional staffs of the office of the state

board of education and the Idaho department of education administered by the board of regents and the board of education, all professional staff of the public charter school commission, and the professional staffs of the Idaho division of career technical education and vocational rehabilitation administered by the state board for career technical education. "Teaching staff" includes teachers, coaches, resident directors, librarians and those principally engaged in academic research. The word "officer" means presidents, vice presidents, deans, directors, or employees in positions designated by the state board who receive an annual salary of not less than step A of the pay grade equivalent to three hundred fifty-five (355) Hay points in the state compensation schedule. In consultation with the Idaho division of human resources, the state board of education shall implement policies and procedures for nonclassified employees to conform with section 59-1603, Idaho Code.

(k) Employees of the military division.

(l) Patients, inmates or students employed in a state institution.

(m) Temporary employees.

(n) All employees and officers of the following named commodity commissions, and all employees and officers of any commodity commission created hereafter: the Idaho potato commission, as provided in chapter 12, title 22, Idaho Code; the Idaho honey commission, as provided in chapter 28, title 22, Idaho Code; the Idaho bean commission, as provided in chapter 29, title 22, Idaho Code; the Idaho hop grower's commission, as provided in chapter 31, title 22, Idaho Code; the Idaho wheat commission, as provided in chapter 33, title 22, Idaho Code; the Idaho pea and lentil commission, as provided in chapter 35, title 22, Idaho Code; the Idaho apple commission, as provided in chapter 36, title 22, Idaho Code; the Idaho cherry commission, as provided in chapter 37, title 22, Idaho Code; the Idaho mint commission, as provided in chapter 38, title 22, Idaho Code; the Idaho sheep and goat health board, as provided in chapter 1, title 25, Idaho Code; the state brand inspector, and all district supervisors, as provided in chapter 11, title 25, Idaho Code; the Idaho beef council, as provided in chapter 29, title 25, Idaho Code; and the Idaho dairy products commission, as provided in chapter 31, title 25, Idaho Code.

(o) All inspectors of the fresh fruit and vegetable inspection service of the Idaho department of agriculture, except those positions involved in the management of the program.

(p) All employees of correctional industries within the department of correction.

(q) All deputy administrators and wardens employed by the department of correction. Deputy administrators are defined as only the deputy administrators working directly for the nonclassified division administrators under the director of the department of correction.

(r) All public information positions, with the exception of secretarial positions, in any department.

(s) Any division administrator and all executive employees.

(t) Any regional administrator or division administrator in the department of environmental quality.

(u) All employees of the division of financial management, all employees of the STEM action center, all employees of the office of ~~species conser-~~

1 ~~vation species, minerals, and energy coordination, and all employees of the~~
 2 ~~office of drug policy, and all employees of the office of energy and mineral~~
 3 ~~resources.~~

4 (v) All employees of the Idaho food quality assurance institute.

5 (w) All employees of the office of the state appellate public defender,
 6 pursuant to chapter 59, title 19, Idaho Code, and the office of the state pub-
 7 lic defender, pursuant to chapter 60, title 19, Idaho Code.

8 (x) All quality assurance specialists or medical investigators of the
 9 Idaho board of medicine.

10 (y) All pest survey and detection employees and their supervisors hired
 11 specifically to carry out activities under the Idaho plant pest act, chapter
 12 20, title 22, Idaho Code, including but not limited to pest survey, detec-
 13 tion, and eradication, except those positions involved in the management of
 14 the program.

15 (z) All medical directors employed by the department of health and
 16 welfare who are engaged in the practice of medicine, as defined by section
 17 54-1803, Idaho Code, at a state hospital or other treatment facility managed
 18 and operated by the department of health and welfare.

19 (aa) All hearing officers and all other employees of the office of ad-
 20 ministrative hearings, as provided for in chapter 52, title 67, Idaho Code.

21 (bb) All attorneys employed by the division of occupational and profes-
 22 sional licenses.

23 SECTION 15. That Section 67-5806, Idaho Code, be, and the same is hereby
 24 amended to read as follows:

25 67-5806. DECLARATION OF EMERGENCY. A disaster emergency, as defined
 26 in section 46-1002(2) and (3), Idaho Code, is in existence as a result of
 27 the introduction of Canadian gray wolves, which have caused and continue to
 28 threaten vast devastation of Idaho's social culture, economy and natural re-
 29 sources. The geographical extent of this emergency shall include any part
 30 of the state of Idaho where gray wolves have been sighted and whose sighting
 31 has been documented or otherwise confirmed by the office of ~~species conser-~~
 32 ~~vation species, minerals, and energy coordination~~ or the department of fish
 33 and game.

34 SECTION 16. That Section 67-5807, Idaho Code, be, and the same is hereby
 35 amended to read as follows:

36 67-5807. GOVERNOR -- EXECUTIVE ORDERS. (1) Pursuant to this act, the
 37 governor may issue executive orders and proclamations and amend or rescind
 38 such orders and proclamations. Executive orders and proclamations have the
 39 force and effect of law. A disaster emergency may be declared by executive
 40 order or proclamation of the governor if the governor finds any of the fol-
 41 lowing:

42 (a) Any Canadian gray wolf within the state is a carrier of a disease
 43 harmful to humans, livestock, pets and wild game and that there is a risk
 44 of transmission of such disease to humans, livestock, pets or wild game;

45 (b) The potential of human-wolf conflict exists and that the Canadian
 46 gray wolf is frequenting areas inhabited by humans or showing habitu-
 47 ated behavior toward humans;

1 (c) That the potential for livestock-wolf conflict exists and that the
 2 Canadian gray wolf is frequenting areas that are largely ranchland with
 3 livestock or showing evidence of habituated behavior toward livestock;

4 (d) The numbers of Canadian gray wolves are such that there is an im-
 5 pact to Idaho big game herds as identified in the wolf management plan
 6 of 2002, and that there is evidence that increasing the number of wolves
 7 beyond one hundred (100) has had detrimental impacts on big game popula-
 8 tions, the economic viability of the Idaho department of fish and game,
 9 outfitters and guides, and others who depend on a viable population of
 10 big game animals;

11 (e) The numbers of big game animals have been significantly impacted
 12 below that of recent historical numbers and that there has been a mea-
 13 surable diminution in the value of businesses tied to outfitting and
 14 other game or hunting based businesses.

15 (2) The executive order or proclamation shall direct the office of
 16 ~~species conservation~~ species, minerals, and energy coordination to initiate
 17 emergency proceedings in accordance with section 67-5247, Idaho Code. Any
 18 person may challenge an action or proposed action of the office of ~~species~~
 19 ~~conservation~~ species, minerals, and energy coordination by following the
 20 appeals process prescribed by the Idaho administrative procedure act, chap-
 21 ter 52, title 67, Idaho Code.

22 (3) The state of disaster emergency shall continue until the governor
 23 finds that either gray wolves are delisted in Idaho with full state manage-
 24 ment restored or the threat has been dealt with to the extent that emergency
 25 conditions no longer exist. When either or both of these events occur, the
 26 governor shall terminate the state of disaster emergency by executive order
 27 or proclamation. Provided however, that no state of disaster emergency pur-
 28 suant to the provisions of this act may continue for longer than one (1) year.
 29 The legislature by concurrent resolution may terminate a state of disaster
 30 emergency at any time. Thereupon, the governor shall issue an executive
 31 order or proclamation ending the state of disaster emergency. All executive
 32 orders or proclamations issued pursuant to this section shall indicate which
 33 of the conditions in this section exist, the area or areas threatened and the
 34 actions planned to resolve the issue, including contracting with USDA-APHIS
 35 wildlife services. An executive order or proclamation shall be disseminated
 36 promptly by means calculated to bring its contents to the attention of the
 37 general public and, unless the circumstances attendant upon the disaster
 38 prevent or impede, be promptly filed with the office of ~~species conservation~~
 39 ~~species, minerals, and energy coordination~~, the department of fish and game,
 40 the office of the secretary of state, and the office of the sheriff of each
 41 county where the state of disaster emergency applies.

42 SECTION 17. An emergency existing therefor, which emergency is hereby
 43 declared to exist, this act shall be in full force and effect on and after
 44 July 1, 2026.